

Navneet Kumar Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 January 2020 · WRIT - C No. 507 of 2020 · **Writ disposed; relegated to Clause 6.5; no coercive action for six weeks.**

HEADNOTE

A consumer's writ seeking to quash an Executive Engineer demand and a subsequent meter-sealing bill was not entertained. Dispute as to correctness of the bill is to be raised under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court directed a fresh application/objection within two weeks, a speaking decision after hearing within four weeks, and a limited stay of coercive action.

FACTUAL SUMMARY

The petitioner, a consumer of the Debai electricity distribution division, District Bulandshahr, sought certiorari to quash an Executive Engineer order dated 7 November 2019 directing payment of Rs. 37,788 and a December 2019 bill demanding Rs. 36,939 for meter sealing. Counsel submitted that after he deposited a cheque for Rs. 37,788 and the connection was restored, the respondents issued the later bill without a hearing. He disputed that demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — statutory remedy

HOLDING

A writ challenging the correctness of an electricity bill will not be entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory remedy. The consumer may file a fresh application or objection before the appropriate authority within the time allowed; that authority is to decide it by a speaking order after hearing. Coercive action is stayed for six weeks or until that decision, whichever is earlier, but the protection lapses if the consumer does not approach in time. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy The Division Bench declined to entertain the writ because Clause 6.5 of the Supply Code is the statutory remedy for a disputed bill. ¶ 1

bill-correction-clause-6.5 The Court treated the challenge to the Executive Engineer demand and the meter-sealing bill as a dispute about correctness of the bill, to be taken under Clause 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE 7 NOVEMBER 2019 DEMAND OF RS. 37,788 AND THE DECEMBER 2019 METER-SEALING BILL OF RS. 36,939

Left to the Clause 6.5 authority on a fresh application/objection. ¶ 1